

[doc. web n. 9955735]
Provision of October 26, 2023
Register of Provisions
n. 506 of October 26, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Avv. Guido
Scorza, Member, and Cons. Fabio Mattei,
Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD TO the Ethical Rules regarding the processing of personal data in the exercise of journalistic activity as set out in Annex 1 of the Code (hereinafter "Ethical Rules");

HAVING REGARD TO the complaint submitted to the Guarantor, pursuant to Article 77 of the Regulation, on January 21, 2022, by XX, assisted by her lawyer Avv. , who complained of a violation of the regulations on the protection of personal data in relation to an article in "Il Quotidiano del Sud" dated December 21, 2021 – titled "Covid enters City Hall," with the subsequent subtitle: "THE VIRUS Positive councilor XX, two assessors in quarantine" – in which it was reported that she had undergone a swab and was in isolation; a false report, also mentioned in a subsequent article on December 23, 2021.

CONSIDERING, in particular, that the complaint states that:

- the article reported the news of the spread of Covid contagion in the Accounting Department of the Municipality and the fact that several members of it had undergone molecular swabs (with "precise indications also on the time of the swab and even the expected time for the release of results"); the service was accompanied by a close-up photograph of the complainant and the following caption: "The assessor for XX XX has undergone a swab and is now in isolation."
- this publication, in addition to infringing the right to disclose or not disclose certain situations related to the health sphere of the interested party, provided information that was not true, given that she "was not among the employees subjected to mandatory swabbing as traced, and even less was she in isolation."
- on the day of publication of the article - December 21, 2021 - the interested party sent several certified emails (PEC) to the data controller and to the editorial offices of the newspaper requesting the removal of the article; communications that were duly delivered but not responded to by the recipients;
- on the subsequent December 23, 2021 - the day of the municipal council meeting - a new article in "Il Quotidiano del Sud" reported the "not current" news of the measures adopted in the previous council on December 20 and published on the Municipality's website on the following December 21 (dates that, however, were not specified in the article), which stated verbatim this clarification: "It should be noted that both measures were approved in the absence of the relevant assessor, namely XX, who is in quarantine due to the outbreak that developed within the Accounting Department."
- the publication of this second article precisely at the time of the convening of the municipal council, which the complainant had attended, in addition to violating her privacy, "produced a significant injury to her moral and reputational sphere, conveying the image of a person with health problems related to SARS-COV-2 and not compliant with the rules for containing contagion."
- the aforementioned articles therefore constituted an unlawful processing of personal data as they were carried out in violation of Articles:
2-septies, paragraph 8, of the Code and 9 of the Regulation (EU) 2016/679, due to the dissemination

of her name, surname, and photo associated with the false information of isolation (article of December 21, 2021) and quarantine (article of December 23, 2021), given that these are situations referring to patients presumably affected by the virus;

167 of the Code, with reference to the unlawful processing of "sensitive" personal data in journalistic activity, given that in this context, communication and dissemination even without the consent of the interested party is permitted, but only within the limits dictated by the right to report, that is, by the essentiality of the news and public interest (Cass. N. 16311 of 2018), which in this case were widely exceeded, given that "for readers it would have been sufficient to know that there had been confirmed cases of positivity in the economic-financial offices of the Municipality and that the protocol for tracing had been regularly applied."

HAVING REGARD TO the note of October 26, 2022 (prot. n. 58673) with which the Authority requested Edizioni Proposta Sud S.r.l to provide observations on the complaint, also regarding the profile of the alleged failure to respond to the request previously submitted by the complainant on December 21, 2021;

NOTING the lack of response to the aforementioned note;

HAVING REGARD TO the note of December 30, 2022 (prot. n. 87956) with which the aforementioned Company was then contested for the violation of Article 157 in conjunction with Article 166, paragraph 2 of the Code and is

of the Company – it was communicated that the hearing scheduled for September 11, 2023, was postponed to a later date;

CONSIDERING the note of September 15, 2023, in which the Company provided further clarifications regarding the arguments previously presented and reiterated its position;

NOTING that the Company maintains that the publication in question was justified by the public interest and that the information disseminated was accurate and relevant;

ACKNOWLEDGING the ongoing nature of the proceedings and the necessity for a thorough examination of the claims made by the complainant;

RECALLING that the complainant has the right to defend their interests and to seek redress for any alleged violations of their rights;

DEEMING it essential to ensure that all parties involved have the opportunity to present their arguments and evidence in a fair and impartial manner;

RESOLVED to schedule a new hearing date to allow for the complete presentation of the case and to facilitate a comprehensive review of the evidence and arguments put forth by both parties.

This resolution is made in accordance with the applicable legal provisions and with the aim of upholding the principles of justice and fairness in the resolution of this matter.

same Company – postponed the hearing to the subsequent September 19, 2023;

HAVING REGARD to the communication of September 18 in which Edizioni Proposta Sud S.r.l. again requested the Authority to postpone the hearing "due to unavoidable commitments of the parties";

HAVING REGARD to the note of September 19 in which the Authority set a new date (September 26, 2023), to which the Company responded, on September 25, stating that it was referring to its previous defenses and "not adhering to this meeting as the conduct of Edizioni Proposta Sud S.r.l. did not constitute any violation of privacy and, in any case, did not cause any damage to Dr. XX";

CONSIDERING that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor";

HAVING REGARD to the article of December 21, 2021 indicated by the complainant, titled "Covid enters City Hall," which:

- contains, in the "eyebrow," the information that there are "two assessors in quarantine";
- is accompanied by a photograph of the complainant;

- states verbatim, in a separate caption (the so-called "lead of the article"), that the complainant – assessor of XX at the Municipality of XX – had undergone a swab and was in isolation;
NOTING that, as evidenced by the documentation attached to the complaint, on the same day of the publication of the article, the complainant communicated to the newspaper, using various contacts, including certified email, the untruthfulness of what was published, simultaneously requesting the removal of the article;
NOTING that no response appears to have been provided to this request by the data controller;
CONSIDERING that, pursuant to Article 12 of the Regulation "the data controller provides the data subject with information regarding the action taken concerning a request under Articles 15 to 22 without unjustified delay and, in any case, no later than one month from the receipt of the request," unless there are needs for an extension of the deadline to be communicated to the data subject within the aforementioned term (paragraph 3);
DEEMING that the failure to respond to the complainant's requests constitutes a violation of this provision;
NOTING further that the information provided by the newspaper regarding the complainant's state of isolation or "quarantine" – reiterated in the article of December 23 – was found not to correspond to the actual situation at the time of the publication of the articles, as declared and proven by the complainant;
CONSIDERING that the particular regime reserved for journalistic activity (Articles 136 et seq. of the Code) does not exempt those operating in this field from respecting the general principles of processing provided for in Article 5(1) of the Regulation and, in particular, the principles of lawfulness and fairness (letter a), of "minimization" (letter c), and of "accuracy" of data (letter d);
ALSO CONSIDERING that Article 4 of the Ethical Rules expressly states that "the journalist corrects errors and inaccuracies without delay, also in accordance with the duty of correction in the cases and manners established by law";
CONSIDERING that the duty to verify the reliability and correctness of information and the duty to correct inaccurate information constitute the foundation of journalistic activity as established, even before the entry into force of the legislation on personal data protection, by the ethical codes governing the sector (now collected in the "Consolidated Text of Journalistic Duties");
MOREOVER, CONSIDERING that having undergone a swab constitutes information that the Guarantor has repeatedly deemed to fall under health data, regardless of its outcome, as it is linked to the provision of a health service (opinion of November 3, 2020, doc. web 9563445; see also provision of October 20, 2022, doc. web n. 9832507 and provision of January 23, 2022, doc web n. 9744496);
CONSIDERING that, in the journalistic field, the dissemination of health data is permitted "in the pursuit of the essentiality of information and always in respect of the dignity of the person if this holds a position of particular social or public relevance" (Article 137, paragraph 3, of the Code and Article 11, paragraph 2, of the Ethical Rules);
ON THE OTHER HAND, CONSIDERING that the assessment of the essentiality of the information presupposes a preliminary verification of the accuracy of the information itself and that this verification, in the specific case, does not appear to have been carried out, despite the particularly sensitive nature of the subject matter intended to be addressed, as it pertains to the dissemination of Covid, at a time – that of the publication of the articles in question – when the alarm regarding the state of the pandemic was still strongly perceived and there was particular attention to compliance with measures aimed at containing the contagion;
NOTING, incidentally, that the judicial ruling cited by the Company (Cass. civ., sez. III, ord. n. 12012 of February 16, 2017 – whose contents lend themselves to different interpretations and has nonetheless been followed by new rulings (Cass. Pen. sez. V, n. 6110 of February 7, 2019) – does not appear suitable to support its defenses, given that the...
elements of the article of December 21, 2021, identified above (headline, title, and outline) provide information (the state of isolation post-swab of the complainant) that is not clarified and completed by the rest of the article (nor in the subsequent one of December 23);
CONSIDERED therefore that, from the perspective of the content of the articles, the conduct of the

holder constitutes a violation of the general principles of lawfulness and correctness of processing, of minimization and accuracy of personal data, as per Art. 5, par. 1, lett. a), c) and d), of the Regulation, as well as a violation of the provisions relating to journalistic activity as per Arts. 137, paragraphs 1 and 3, and 139 of the Code and 4 of the Ethical Rules;

CONSIDERED that compliance with the aforementioned Ethical Rules constitutes an essential condition for the lawfulness and correctness of the processing of personal data (Art. 2 quater of the Code);

CONSIDERED, therefore, pursuant to Art. 57 par. 1, lett. f), of the Regulation, that the complaint is well-founded and, as a result of the violations found, pursuant to Art. 58, par. 2, lett. f), that it is necessary to order Edizioni Proposta Sud S.r.l. to cease further dissemination of data relating to the complainant in the terms described above, including online, including the historical archive, except for mere preservation for potential use in judicial proceedings;

CONSIDERED also that non-compliance with Arts. 5 and 12 of the Regulation is sanctioned by Art. 83, par. 5, lett. a) and b) of the Regulation and that, similarly, non-compliance with the Ethical Rules is sanctioned pursuant to the combined provisions of Arts. 2-quater, 166, paragraph 2, of the Code, and 83, par. 5, of the Regulation;

CONSIDERED also that the violation of Art. 157 of the Code is sanctioned pursuant to the combined provisions of Arts. 166, paragraph 2 of the Code, and 83, par. 5, of the Regulation;

CONSIDERED, therefore, that it is necessary to adopt an injunction order, pursuant to Arts. 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Edizioni Proposta Sud S.r.l. of the administrative pecuniary sanction provided for by the combined provisions of Arts. 2-quater, 166, paragraph 2, of the Code, and 83, paragraphs 3 and 5, of the Regulation;

NOTED that for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Art. 83, par. 2, of the Regulation and that in this case it is necessary to consider, as aggravating circumstances:

- a) the severity of the violation, taking into account the particular nature of the data relating to the complainant concerning health, disseminated without adequate verification of their accuracy and in a temporal context still characterized by a strong social alarm related to the pandemic;
- b) the failure to adopt measures aimed at mitigating the harmful conduct resulting from the dissemination of inaccurate information, having failed to publish corrections and to respond to the complainant's requests;
- c) the conduct assumed during the procedure, aggravated by the late or absent response to the requests of the Office and the unjustified repeated postponement of the hearing requested by the same holder, which he ultimately chose to waive;

and, as mitigating factors:

- d) the declaration of the data controller of having acted in the legitimate exercise of the right to report on a topic (the spread of Covid and its related repercussions on the conduct of local administrative activities) of particular public interest;
- e) the absence of previous measures adopted in this matter against the Company;

NOTED that, based on the financial data of the Company, in this case, the maximum applicable penalty is equal to €20,000,000 (20 million);

CONSIDERED that, based on the overall elements indicated above and the principles of effectiveness, proportionality, and deterrence indicated in Art. 83, par. 1 of the Regulation, the administrative pecuniary sanction should be applied in the amount of €20,000.00 (twenty thousand), equal to 0.1 of the maximum penalty;

REMEMBERED that, in case of non-compliance with the provisions of the Guarantor contained in this provision, the criminal sanction referred to in Art. 170 of the Code may apply, in addition to the administrative sanction referred to in Art. 83, par. 5, lett. e), of the Regulation;

CONSIDERED that the conditions exist to proceed with the annotation in the internal register of the Authority pursuant to Art. 57, par. 1, lett. u), of the Regulation, regarding the measures adopted in this case in accordance with Art. 58, par. 2, of the same Regulation;

VIEWED the documentation in the records;

VIEWED the observations made pursuant to Art. 15 of the Guarantor's regulation No. 1/2000;

REPORTER Avv. Guido Scorza;

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR pursuant to Arts. 57 par. 1, lett. f) of the Regulation, declares the complaint well-founded for the reasons stated in the preamble and, in particular:

a) pursuant to Art. 58, par. 2, lett. f), orders Edizioni Proposta Sud S.r.l. to cease further dissemination of data relating to the complainant in the terms described above, including online, including the historical archive, as it is in violation of Arts. 5, par. 1 lett. a), c) and d), of the Regulation, Arts. 2 quater, paragraph 4, 137, paragraphs 1 and 3, and 139 of the Code and Art. 4 of the Ethical Rules, except for mere preservation for potential use in judicial proceedings;

b) ascertains the violation of art. 12 of the Regulation and of art. 157 in conjunction with art. 166, paragraph 2, of the Code;

ORDERS

pursuant to articles 58, paragraph 2, letter i) and 83 of the Regulation to Edizioni Proposta Sud S.r.l., with registered office at Via Aldo Pini, 10, 83100, Avellino, Tax Code and registration number in the Companies Register n. 02207990645, in the person of the legal representative pro tempore, to pay the sum of euro 20,000.00 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to art. 166, paragraph 8, of the Code has the option to settle the dispute by paying, within thirty days, an amount equal to half of the imposed sanction;

ENJOINS

Edizioni Proposta Sud S.r.l., in the event of failure to settle the dispute pursuant to the aforementioned art. 166, paragraph 8, of the Code, to pay the sum of euro 20,000.00 (twenty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law n. 689/1981.

DISPOSES

the annotation in the internal register of the Authority referred to in art. 57, paragraph 1, letter u), of the Regulation, of the measures adopted against Edizioni Proposta Sud S.r.l. in accordance with art. 58, paragraph 2, of the same Regulation.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of Legislative Decree 1st September 2011, n. 150, against this provision an appeal may be made to the ordinary judicial authority, with a petition filed, alternatively, at the court of the place where the data controller resides or has its registered office or at the court of the place of residence of the interested party within the term of thirty days from the date of communication of the provision itself or sixty days if the applicant resides abroad.

Rome, 26 October 2023

THE PRESIDENT

Stanzione

THE RAPPOORTEUR

Scorza

THE SECRETARY GENERAL

Mattei